

ZESA HOLDINGS LIMITED
Job Description Form

For Grading Use		
Band	Grade	Sub-Grade
C	C5	1

Job Title: Legal Officer

Job Number:

Company: ZETDC (Pvt) Ltd

Department: Legal Department

Location: Head Office Harare

Number of Incumbents: Two (2)

Name of Analyst: Mr. T. Chendume

Date of Analysis: 19/05/2017

ORGANISATION STRUCTURE *(Titles only)*

Incumbent's Superior (Managing Director)

Incumbent's Superior (Company Secretary and Legal Advisor)

Incumbent's Job (Legal Officer)

Subordinates (N/A)

Subordinates (N/A)

Subordinates (N/A)

MAIN PURPOSE OF THE JOB *(brief statement only of why the job exists). Complete this sentence last.*

To participate in contract drafting, negotiation and review, litigation and debt collection on behalf of ZETDC and provide company secretarial services and legal advice to ZETDC management and Staff.

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SECTION TWO

KEY RESULT AREAS/ DESCRIPTION OF TASK / PROCESSES AND OPERATIONS

KEY RESULT AREAS / TASKS	PERFORMANCE STANDARDS/ TASK MEASUREMENTS (Accounting Practices, Trade Manuals, Dates of Completion, etc.)	EXTENT OF DISCRETION (Where applicable)
Providing legal advice a. Advises Internal and External Clients e.g. during disciplinary and appeal hearings. b. Conducts Legal Research	• Electricity Act [Chapter 13:19] • SI 44A/2013 Electricity (Unpaid Bills, Prepaid Meters and Smart Meters) Regulations, 2013 • S.I 1/08 • S.I 15/06 • Code of Conduct and Grievance Handling Procedures 2011 • Administrative Principles, Policies and Procedures Manual – 2005	Advise Managers
Contract Drafting and Negotiation a. Attends Contract Negotiation Meetings. b. Gives Legal Advice and minuting the negotiation proceedings c. Conducts research on applicable laws and on compliance issues. d. Drafts and/or editing Agreements	• FIDIC General Conditions of Contract • Arbitration Act [Chapter 7:15] • Companies Act [Chapter 24:03] • Procurement Act • Private Investigators and Security Guards SI 180/10	Advise Managers
Debt Collection	• Electricity Act	Advise Managers

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a. Hands over Debt Profile Schedules b. Liaises with External Lawyers c. Attends Customer/External Lawyers debt collection meetings d. Attends court with the External lawyers	[Chapter 13:19] • Prescription Act [Chapter 8:11] • High Court Rules • Magistrates Court Rules • SI 44A/2013 Electricity (Unpaid Bills, Prepaid Meters and Smart Meters) Regulations, 2013	
Litigation a. Researches on applicable laws b. Prepares court papers (Magistrates Court, Labour Court, NEC, and Ministry of Labour). c. Appears in Court defending ZETDC (Magistrates Court, Labour Court, NEC, Ministry of Labour). d. Liaises with External Lawyers for High Court and Supreme Court cases. e. Attends Round Table Conference Meetings and Pre-trial Conference Meetings for all High Court matters. f. Represents ZETDC in the company of External Lawyers at High Court and Supreme Court Level.	• Electricity Act [Chapter 13:19] • Prescription Act [Chapter 8:11] • Urban Town Councils Act [Chapter 29:15] • Rural District Councils Act [Chapter 29:13] • Labour Act [Chapter 28:01] • Labour Court Rules • Arbitration Act [Chapter 7:15] • S.I 1/08 • SI 50 of 2012 - The Energy Industry 2012 Collective Bargaining Agreement • SI 44A/2013 Electricity (Unpaid Bills, Prepaid Meters and Smart Meters) Regulations, 2013 • SI 155 of 1988 - ZETDC (Miscellaneous Charges) By-laws, 1988 • S1 142 of 2004 ZETDC (Pvt) Ltd (Miscellaneous	Advise Managers

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	Charges) (Amendment) By-laws, 2004 (No.3) • SI 59/2012 Zvishavane (Incorporated Area) (Mandava High Density) (Amendment) By-laws, 2012 (No.9). • Code of Conduct and Grievance Handling Procedures 2011 • Administration Notes, Procedures and Manuals. • Commercial Guidelines	
Secretarial a. Prepares Board Packs for the board committee meetings and board meetings b. Takes minutes and producing an accurate record of the proceedings c. Circulates draft minutes for correction	• King 3 Code of Corporate Governance. • National Corporate Governance Code	Advise Managers
Legal Risk Management and Compliance a. Files Statutory Returns e.g. CR14, Annual Returns, Transmission and Distribution Licenses, ECZ Compliance Certificate. b. Ensures Compliance with good Corporate Governance Principles c. Monitors Adherence to Statutory/Regulatory obligations e.g ZIMRA, Procurement and REA obligations. d. Files Liquidation Claims e. Attends Creditors Meetings f. Attends and Voting during Scheme of Arrangement Meetings.	• VAT Act [Chapter 23:12] • Income Tax Act [23:06] • Labour Act [Chapter 28:01] • Prescription Act [Chapter 8:11] • Procurement Act [Chapter 22:14] • Factories and Works Act [14:08]	Advise Managers

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SECTION THREE

ROLE DIMENSIONS

Describe the quantitative data applicable to the above position inclusive of budget responsibilities, number of staff, estimated value of business, etc.

N/A

KEY DECISIONS MADE

N/A

SUPERVISORY CONTROLS

N/A

OTHER IMPORTANT CONTACTS (Particularly external to the Organisation)

a. ADVISES

- Internal and External Clients.
- External Lawyers

b. LIAISES WITH

- External Lawyers
- Debt Collection Lawyers
- The DA/NEC
- The Unions
- Opposition Lawyers

PLANNING

- Ensures timeous prosecution of cases
- Ensures timeous filing of statutory returns e.g CR14 and Annual Returns
- Ensures timeous preparation and dispatch of board packs
- Ensures the Litigation Report and Debt Collection Reports are updated each month
- Ensures timeous submission of Legal Opinion.

HAZARDS AND SAFETY REQUIREMENTS

N/A

EDUCATION

A'Level

POST SCHOOL QUALIFICATIONS

Bachelor of Laws Honours Degree (LLBS)

Professional Membership eg Law Society of Zimbabwe

EXPERIENCE

Two (2) years' experience

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ESSENTIAL SPECIALIST SKILLS OR KNOWLEDGE REQUIRED TO MEET DEMANDS OF THE JOB

- a. Computer Literacy
- b. Good Communication Skills
- c. Good Drafting and Review Skills
- d. Negotiation Skills
- e. Analytical and Research Skills
- f. Filling Skills.

LENGTH OF TIME TO FULL JOB EFFECTIVENESS

Three (3) months

Agreed by Incumbent	 PRINT NAME	 SIGNATURE	 DATE
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Agreed by Supervisor	 PRINT NAME	 SIGNATURE	 DATE
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Agreed by Managing Director	 PRINT NAME	 SIGNATURE	 DATE
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